

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Deanna Medina	Team: Squad #12	CCRB Case #: 202308673	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 09/12/2023 11:08 AM	Location of Incident: § 87(2)(b) in Brooklyn	18 Mo. SOL 3/12/2025	Precinct: 71		
Date/Time CV Reported Wed, 09/13/2023 3:57 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 09/13/2023 3:57 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Sergey Shklarov	01760	964779	071 PCT
2. PO Arnol Rodriguez	26599	967303	MELD

Officer(s)	Allegation	Investigator Recommendation
A . PO Arnol Rodriguez	Abuse: Police Officer Arnol Rodriguez entered § 87(2)(b) in Brooklyn.	§ 87(2)(b)
B . PO Sergey Shklarov	Abuse: Police Officer Sergey Shklarov entered § 87(2)(b) in Brooklyn.	§ 87(2)(b)
C . PO Sergey Shklarov	Abuse: Police Officer Sergey Shklarov forcibly removed § 87(2)(b) to an ambulance.	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed this complaint on behalf of § 87(2)(b) via the CCRB's Call Processing System on September 13, 2023.

On September 12, 2023, § 87(2)(b) called 911 and reported package theft. At approximately 11:08 AM the same day, PO Sergey Shklarov and PO Arnol Rodriguez of the 71st Precinct responded to her home, § 87(2)(b) in Brooklyn. PO Rodriguez and PO Shklarov entered § 87(2)(b) apartment (**Allegations A and B: Abuse of Authority, § 87(2)(g)** PO Shklarov forcibly removed § 87(2)(b) in handcuffs, to an ambulance outside (**Allegation C: Abuse of Authority, § 87(2)(g)** § 87(2)(b) was not arrested or summonsed.

The investigation obtained two BWC videos capturing this incident (Board Review 07), summarized in IA #60 (Board Review 08). The investigation also obtained surveillance video from § 87(2)(b) in Brooklyn (Board Review 09), summarized in IA #51 (Board Review 10).

PO Rodriguez was on military leave from the NYPD beginning November 3, 2023, and remains on leave as of the writing of this report. The CCRB was unable to interview him until he proactively reached out to the undersigned investigator in December 2024. As such, he did not provide a statement until December 13, 2024.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Arnol Rodriguez entered § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: Police Officer Sergey Shklarov entered § 87(2)(b) in Brooklyn.

Allegation (C) Abuse of Authority: Police Officer Sergey Shklarov forcibly removed § 87(2)(b) to an ambulance.

§ 87(2)(b) provided a statement to the CCRB on September 20, 2023 (Board Review 11). She stated that on September 12, 2023, she called 911 and requested assistance retrieving a package from her building's superintendent. Officers rang § 87(2)(b) intercom and asked them to let her into the building. When § 87(2)(b) exited her apartment, PO Shklarov and PO Rodriguez were in the hallway. § 87(2)(b) stood in front of her closed apartment door. § 87(2)(b) told PO Shklarov that she had called 911 because her super had taken her package. While § 87(2)(b) was talking to the officers in the hallway, the super exited an empty apartment nearby and entered the hallway. § 87(2)(b) asked the officers to ask the super about her package. PO Shklarov turned to § 87(2)(b) and said that the super denied having the package and that he said he had been on vacation. Two EMTs then exited the elevator with a stretcher. § 87(2)(b) had not requested medical attention. § 87(2)(b) asked an EMT, "Why are you here? Are there any sick people here?" The EMT said that she had arrived with the police. An EMT opened a stretcher and PO Shklarov instructed § 87(2)(b) to get onto the stretcher. § 87(2)(b) refused, saying that she could walk. § 87(2)(b) said that she did not need to go onto the stretcher, as all she had done was ask for a package. PO Shklarov said to § 87(2)(b) "You don't want to go in the stretcher, and you don't want to go in the chair." PO Shklarov immediately handcuffed § 87(2)(b) hands behind her back. The EMTs and officers brought § 87(2)(b) downstairs and outside to an ambulance. PO Shklarov removed the handcuffs from § 87(2)(b). The EMTs examined § 87(2)(b) in the ambulance, and she then returned to her apartment.

Additionally, BWC videos captured both officers entering § 87(2)(b) apartment.

In PO Shklarov's BWC video (Board Review 12), at 3 minutes 50 seconds, PO Shklarov and PO Rodriguez exit the elevator on the fourth floor of § 87(2)(b) building and immediately encounter § 87(2)(b). PO Shklarov asks § 87(2)(b) to explain what happened. § 87(2)(b) is upset and speaks in a frustrated tone. She explains that her package was stolen. At 7 minutes 10 seconds, PO Shklarov asks § 87(2)(b) "Ma'am, are you feeling okay today?" § 87(2)(b) continues explaining her allegations of package theft. At 7 minutes 20 seconds, PO Shklarov asks § 87(2)(b) again, "Ma'am, are you feeling okay today? Ma'am, do you have any mental conditions or anything like that?" § 87(2)(b) asks, "What?" Both PO Rodriguez and PO Shklarov ask § 87(2)(b) what medication she takes. § 87(2)(b) continues explaining the incident. At 8 minutes 55 seconds, PO Shklarov asks the superintendent if he regularly has issues with § 87(2)(b). The super explains that he was away on vacation between July 25, 2023 and August 10, 2023, and again from September 1, 2023 to that Saturday [September 9, 2023]. At 9 minutes 22 seconds, PO Shklarov asks the super if he has had a problem with § 87(2)(b) before. § 87(2)(b) says, "Once in a while, she..." and spins his index finger near the right side of his head. The officers then speak with § 87(2)(b) again. At 9 minutes 54 seconds, PO Shklarov says, "Ma'am, you seem a little bit worked up, okay? So I'm going to call an ambulance for you. You're going to talk to them, okay?" § 87(2)(b) complains again about her missing package. PO Shklarov says, "You're not listening to me. I'm going to call an ambulance, okay? And they'll talk to you, okay? To make sure you're alright, okay? Because you seem a little bit worked up." § 87(2)(b) says, "I'm not going to be alright if they keep sneaking my medication." PO Shklarov says, "Okay." At 10 minutes 18 seconds, PO Shklarov moves down the hallway and calls for an ambulance, reporting, "Early signs of dementia." The officers then wait in the hallway with § 87(2)(b).

At 19 minutes 50 seconds, § 87(2)(b) enters her apartment. PO Rodriguez follows her to her doorway, stands on the threshold, and says, "I will wait right here." At 20 minutes 10 seconds, the intercom rings from inside § 87(2)(b) apartment. PO Shklarov says to PO Rodriguez, "I think that's EMS. Buzz them in." PO Rodriguez fully enters § 87(2)(b) apartment. PO Shklarov says, "Yeah, EMS on scene. PO Shklarov then also enters § 87(2)(b) apartment, where PO Rodriguez is at the intercom.

At 22 minutes 30 seconds, EMS personnel arrive in the hallway. PO Shklarov tells EMS, "She thinks that somebody steals her medication. She believes it's the super. The super has an agreement with the pharmacy to steal her medication. She is talking about something from three years ago. She is breaking down crying over it. She's [inaudible]. She's shaking." At 24 minutes 8 seconds, an EMT asks PO Shklarov, "We have to go?" PO Shklarov says "The way that she's acting, I would say yes. But it's your decision. If she doesn't have to..." PO Shklarov says, "I don't think she's a danger to herself honestly. She is just very erratic. Very paranoid." At 25 minutes 51 seconds, PO Shklarov tells an EMT that § 87(2)(b) called 911 the day before for the same reason. At 29 minutes 21 seconds PO Shklarov asks an EMT, "We are removing her?" The EMT replies, "I mean, I think it would be..." PO Shklarov says, "Best?" The EMT says, "Probably. [Inaudible] I mean, you already had a call yesterday, right?" PO Shklarov replies, "Yeah."

At 29 minutes 32 seconds, PO Shklarov asks § 87(2)(b) if she has her apartment keys. § 87(2)(b) enters her apartment. PO Shklarov follows § 87(2)(b) into her apartment, where § 87(2)(b) retrieves her keys. They then return to the hallway. PO Shklarov tells § 87(2)(b) to lock her door. § 87(2)(b) asks why she needs her keys. At 30 minutes 11 seconds, § 87(2)(b) asks, "I'm going someplace?" PO Shklarov says, "You're going to the hospital, yes." § 87(2)(b) says, "No, I am not going to the hospital." § 87(2)(b) continues to refuse to go to a hospital. PO Shklarov says that he does not want to handcuff § 87(2)(b) but will do so, and will forcefully take her outside. At 31 minutes 50 seconds, PO Shklarov asks, "Ma'am, are we walking? Or am I putting you in cuffs?" At

31 minutes 58 seconds, PO Shklarov says, “Do me a favor. Put your hands behind your back.” When § 87(2)(b) does not, PO Shklarov pulls her hands behind her back and handcuffs her. PO Rodriguez and PO Shklarov take § 87(2)(b) to the elevator, downstairs, outside of her building, and into an ambulance. At 36 minutes 10 seconds, PO Shklarov

removes § 87(2)(b) handcuffs. As the EMS personnel examine § 87(2)(b) PO Rodriguez and PO Shklarov depart.

In PO Rodriguez’s BWC video (Board Review 13) at 19 minutes 39 seconds, § 87(2)(b) enters her apartment. PO Rodriguez is outside of the doorway and says to § 87(2)(b) “I will wait right here.” § 87(2)(b) turns back to PO Rodriguez and says, “Hmm?” PO Rodriguez repeats, “I will wait right here.” PO Rodriguez steps onto the threshold of § 87(2)(b) doorway as she walks into her apartment. At 20 minutes 1 second, the intercom in § 87(2)(b) apartment sounds. PO Shklarov says, “I think that’s EMS.” PO Rodriguez says, “Yeah, I don’t know.” PO Rodriguez enters § 87(2)(b) apartment, walks to the intercom, and presses a button. § 87(2)(b) is in another room and cannot see PO Rodriguez. PO Rodriguez says to PO Shklarov, “I think I did it. I don’t know.”

This incident was documented in NYPD Event § 87(2)(b) (Board Review 17, page 5). The Event remarks detail that at 11:01 AM, § 87(2)(b) reported a maintenance worker stealing her diabetes medication. At 11:19 AM, officers requested EMS due to, “Early signs of dementia.”

PO Shklarov provided a statement to the CCRB on November 16, 2023 (Board Review 14). He stated that he responded to a radio run for a larceny in progress. PO Shklarov learned that § 87(2)(b) had called 911 and reported that her super had stolen her medication. PO Shklarov asked § 87(2)(b) if she had seen her super steal the package, but § 87(2)(b) did not answer the question. PO Shklarov then spoke to the super, who said that he was not in the country on the date of the alleged package theft. The super explained that he had had prior issues with § 87(2)(b). As the interaction continued, PO Shklarov determined that § 87(2)(b) was in emotional distress. He requested an ambulance because § 87(2)(b) alleged the super and her pharmacy were “in on it” together. PO Shklarov called for EMS, citing early signs of dementia, so that EMS could evaluate § 87(2)(b). PO Shklarov did not believe § 87(2)(b) posed danger to herself or anyone else. PO Shklarov explained that he was not a medical professional and could not make the sole determination about her condition. § 87(2)(b) did not request medical attention. § 87(2)(b) did not respond when PO Shklarov said that he had called for EMS.

PO Shklarov stated that the moment officers determine someone requires medical attention, that individual’s movement must be restricted for officer safety and the individual’s own safety, so that the individual cannot enter their home and pick up a weapon or lock themselves inside. § 87(2)(b) needed to stay with an officer until EMS arrived. When EMS arrived, they buzzed § 87(2)(b) intercom. § 87(2)(b) was inside of her apartment and PO Rodriguez was at her doorway. PO Shklarov told PO Rodriguez to buzz EMS in. PO Rodriguez moved farther into the apartment and buzzed EMS in. PO Shklarov also entered § 87(2)(b) apartment to let EMS into the building, but by the time he entered § 87(2)(b) apartment, PO Rodriguez was already inside of the apartment. Then, after an EMT spoke with § 87(2)(b) in the hallway, EMS decided to remove § 87(2)(b) and an EMT relayed this decision to PO Shklarov. PO Shklarov entered § 87(2)(b) apartment a second time, when § 87(2)(b) was retrieving her keys. PO Shklarov held the door open to make sure she did not close it or pick up a weapon. PO Shklarov entered the apartment in both instances because he believed § 87(2)(b) could pick up a weapon. PO Shklarov stated that emotionally distressed people tend to behave erratically, so PO Shklarov needed to watch and escort her. When asked during the CCRB interview if he had reason to believe that this situation involved a high risk

of potential violence, PO Shklarov answered, “I can’t make that determination. Every situation is fluid and can change in a split second, and I have had that happen before. This incident is fluid, and every procedure is followed. They can go from compliant to violent in a split second.” However, PO Shklarov then stated that he did not believe there was a high risk of potential violence when he entered § 87(2)(b) apartment. PO Shklarov also stated that he had no reason to believe that § 87(2)(b) had a gun in the apartment, but that he believed that any item may be used as a weapon. PO Shklarov never obtained § 87(2)(b) consent to enter. There was no reason he entered her apartment other than the belief that she was emotionally disturbed.

PO Shklarov then handcuffed § 87(2)(b) to remove her from the building. He did this because she was not compliant. PO Shklarov afforded her multiple opportunities to comply and then handcuffed § 87(2)(b) to prevent her from resisting any further. PO Shklarov stated that he placed § 87(2)(b) in handcuffs for everyone’s safety. § 87(2)(b) was not allowed to refuse medical treatment because EMS made the decision to remove her from the building. EMS informed PO Shklarov that they were taking § 87(2)(b) to § 87(2)(b) Hospital. PO Shklarov did not know whether § 87(2)(b) was ultimately removed to a hospital.

PO Rodriguez provided a statement to the CCRB on December 13, 2024 (Board Review 07). He stated that on September 12, 2024, at approximately 11:08 AM, he and PO Shklarov received a call for a past crime at § 87(2)(b) in Brooklyn. When the officers arrived, § 87(2)(b) told them that her building’s super had stolen her package, which contained medication. At the time, the super was performing maintenance in the apartment next to § 87(2)(b). PO Rodriguez spoke to the super, who stated that he had been out of the country at the time of the alleged package theft. § 87(2)(b) also told the officers that the pharmacy and the super were working together to steal her packages. § 87(2)(b) was not making sense. PO Rodriguez and PO Shklarov thought that § 87(2)(b) may have been an EDP [Emotionally Disturbed Person] and that she needed medical attention. PO Shklarov called an ambulance for § 87(2)(b). PO Shklarov and PO Rodriguez asked to see § 87(2)(b) medication so that they could provide this information to EMS when they arrived. § 87(2)(b) went into her apartment to retrieve her medication. PO Rodriguez told § 87(2)(b) that he would stand outside of her apartment and wait for her. PO Rodriguez was able to see § 87(2)(b) in the hallway of her apartment from his initial position outside of the apartment, but when § 87(2)(b) entered a room, she went out of sight. PO Rodriguez he needed to “keep an eye” on § 87(2)(b) because she may have been an EDP. PO Rodriguez stated that he did not enter § 87(2)(b) apartment before EMS buzzed her intercom. PO Rodriguez stood on the door jamb and held the door open. PO Rodriguez did not believe this constituted a part of § 87(2)(b) apartment. EMS then arrived and buzzed § 87(2)(b) intercom. PO Rodriguez entered § 87(2)(b) apartment to buzz EMS into the building. PO Rodriguez explained that he did not go downstairs to let them in because he was trying to admit them quickly. There was no other reason PO Rodriguez entered § 87(2)(b) apartment. PO Rodriguez did not obtain § 87(2)(b) consent to enter her apartment. PO Rodriguez did not believe there was an emergency at hand when he entered § 87(2)(b) apartment. PO Rodriguez did not have any warrant that allowed him to enter § 87(2)(b) apartment.

NYPD Patrol Guide Procedure 221-13 (Board Review 01) defines an Emotionally Disturbed Person, or “EDP,” as a person who appears to be mentally ill or temporarily deranged and is conducting themselves in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others. Officers will remove an “EDP” to the hospital in an ambulance. If such person is dangerous to himself or others, force may be used when it is reasonable to prevent serious physical injury or death. Members of the service will use only the reasonable force necessary to gain control or custody of a subject.

Per *People v. Doll*, 21 N.Y.3d 665 (2013) (Board Review 16), officers may make warrantless entry where 1) the police have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property, 2) the search is not primarily motivated by intent to arrest and seize evidence, and 3) there exists some reasonable basis to associate the emergency with the area or place to be entered and/or searched.

In *Payton v. New York*, 445 U.S. 573 (1979) (Board Review 18), the United States Supreme Court declared that the Fourth Amendment “draw[s] a firm line at the entrance to the house.” Absent exigent circumstances, the police may not cross the threshold of a home without a warrant.

§ 87(2)(g) [REDACTED]
[REDACTED], he acknowledged fully entering her apartment to buzz EMS into the building quickly. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

NYPD records show that § 87(2)(b) [REDACTED] called 911 to report a larceny. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] PO Shklarov called EMS to the scene and then handcuffed § 87(2)(b) [REDACTED] to remove her from her home and to an ambulance. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) [REDACTED] has been a party (Board Review 04).
- PO Shklarov has been a member of service for six years and this is the first CCRB complaint to which he has been a subject (Board Review 05).
- PO Rodriguez has been a member of service for five years and this is the first CCRB complaint to which he has been a subject (Board Review 19).

Mediation, Civil, and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.

- § 87(2)(b) | § 86(1)(3)&(4) | § 87(2)(c)

RPBP History

- The RBPB Unit reviewed this complaint and ultimately decided it did not contain actionable allegations of Racial Profiling or Bias-Based Policing.

Squad No.: 12

Investigator:	Deanna Medina	Inv. Deanna Medina	11/27/2024
	Signature	Print Title & Name	Date

Squad Leader: Samuel Ross IM Samuel Ross 12/23/2024
Signature Print Title & Name Date

Reviewer: _____

_____ Signature	_____ Print Title & Name	_____ Date
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